Division of Wage and Hour Compliance
NJ Dept. of Labor & Workforce Development
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Trenton NJ 08625-0389

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OFFICIAL USE ONLY

Claim# _____ Empl# _____

☐ Field ☐ IBM ☐ WC ☐ No Jurisdiction

Field Rpt# _____

Case# _____

WAGE COMPLAINT

All workers, including undocumented workers, have a right to be paid for their work. The Division of Wage and Hour Compliance does not investigate the legal status of any worker. We apply New Jersey's labor laws equally to all workers, regardless of legal status. We do not share information with U.S. Citizenship & Immigration Services.

Instructions: You may file your wage complaint online or by mail.

To file online visit *nj.gov/labor*, click on Worker Protections, then Wage & Hour Compliance. Select File a Complaint, then File a Wage Complaint. When you file online you will be given the option to attach documents that support your complaint.

To file your wage complaint by mail, complete both sides of this form and answer all questions. Type or print legibly. Attach a copy of your last paycheck and W-2 form if you have them. Attach any other documents that support your complaint. Mail or fax all documents to the address at the top of this page.

Filing Anonymously: In general, the public has the right, under the Open Public Records Act (OPRA), to see most information kept as part of any public record. However, The NJ Department of Labor and Workforce Development endeavors to protect the confidentiality of a complainant or a witness to the maximum extent allowable by law. You may file an anonymous complaint, but then neither you nor anyone else will receive any information about the complaint. To file an anonymous complaint, write "ANONYMOUS" in the Employee section of this form and leave the address blank. Without revealing personal details, provide as much information as you can about the employer and the reason you are filing a complaint. Mail or fax your complaint.

Employee Information

1. First Name Last Name M.I.

2. Mailing Address Floor/Apt. No

City State ZIP Code

3. Phone No.

4. Alternate Phone No.

5. Social Security No. (*not required*)

6. Is a third party (*such as an attorney, agency, or legal service*) submitting this complaint as your representative or agent?
☐ Yes If Yes, answer items #7–11. ☐ No If No, go to item #12.

7. Name of Person, Agency or Service

8. Mailing Address

City State ZIP Code

9. Third Party Phone No.

10. Fax No.

11. Email

Employer Information

12. Business Name

13. Business Street Address (*not a PO Box*)

City State ZIP Code County

14. Business Mailing Address (*if different from street address*)

City State ZIP Code

15. Business Phone No.

16. Fax No.

17. Email

18. Name & Title of Contact Person

19. Contact Phone No.

OFFICIAL USE ONLY: Claim # _____

Employment Details

20. First Day Worked

21. Last Day Worked

22. Rate of Pay (*gross amount*)
Per Hour: $_____ Per Week: $_____ Other: $_____

23. Job Title

24. Main Job Duties

25. Are you still working for this employer?
☐ Yes
☐ No Reason: _____

26. Did you work at the business address listed in item #13?
☐ Yes
☐ No Where did you actually do your work?
Street Address City State ZIP Code County

27. Joint Employer (*such as an employee leasing company or any other individual or business who may be responsible for your unpaid wages*)

28. Joint Employer Mailing Address City State ZIP Code Phone No.

Complaint Reason Details

29. **Check all reasons for filing this complaint**:

- ☐ Wages not paid
- ☐ Last paycheck not paid
- ☐ Vacation or holiday not paid
- ☐ Overtime not paid
- ☐ Cost of company uniforms and/or equipment deducted from paycheck
- ☐ Improperly classified as an independent contractor (*while employed in the contruction industry*)
- ☐ Commission, severance or bonus not paid
- ☐ Paid less than minimum wage
- ☐ Paycheck bounced or unable to cash paycheck
- ☐ Shortages or deductions from paycheck
- ☐ Temporary Workers Bill of Rights
- ☐ Domestic Workers Bill of Rights
- ☐ Pay and Benefit Transparency
- ☐ Earned sick leave
- ☐ Other (explain below)

Explain why you believe the employer owes you wages. List the dates and hours for which you believe wages are due. Attach additional sheets if necessary.

_____

_____

_____

_____

What is the <u>total amount of wages</u> (before tax deductions) you believe the employer owes you? $ _____
If you are not sure, please provide an estimate.

30. Did you ask the employer for the money you believe is due?
☐ Yes Name and title of the person you asked _____
☐ No

31. I understand that, in general, the public has the right under the Open Public Records Act (OPRA) to request most information kept as part of any public record; and also that the New Jersey Department of Labor and Workforce Development will endeavor to protect the confidentiality of a complainant or witness to the maximum extent allowable by law. (*If you are filing anonymously, you are not required to sign below*.)

_____ _____
Signature Date

_____ _____
Signature of Parent or Guardian (required if complainant is under 18 years old) Date

If under 18, give age _____ and date of birth _____

Please attach if you have them:
- ✓ a copy of your last paycheck and W-2 form
- ✓ copies of any bounced paycheck(s)
- ✓ any other documents that support your complaint